

STATE OF NEW YORK

2280--B

2025-2026 Regular Sessions

IN SENATE

January 16, 2025

Introduced by Sens. WEBB, JACKSON, MAYER, PERSAUD, ROLISON -- read twice and ordered printed, and when printed to be committed to the Committee on Crime Victims, Crime and Correction -- reported favorably from said committee, ordered to first and second report, ordered to a third reading, amended and ordered reprinted, retaining its place in the order of third reading -- recommitted to the Committee on Crime Victims, Crime and Correction in accordance with Senate Rule 6, sec. 8 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the executive law and the general business law, in relation to requiring a lethality assessment in incidents of domestic violence

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Subdivision 3 of section 646 of the executive law, as added
2 by chapter 152 of the laws of 2019, is amended to read as follows:
3 3. An individual who has been the victim in this state of a family
4 offense as defined in subdivision one of section 530.11 of the criminal
5 procedure law or section eight hundred twelve of the family court act
6 may, upon alleging that it would be a hardship for [~~him or her~~] such
7 individual to make such complaint in the local jurisdiction in which
8 such offense occurred, make a complaint to any local law enforcement
9 agency in the state regardless of where the act took place. Such local
10 law enforcement agency shall take a police report of the matter, as well
11 as prepare a domestic [~~violence~~] incident report which includes lethali-
12 ty assessment questions as defined in subdivision fifteen of section
13 eight hundred thirty-seven of this chapter and provide the complainant
14 with a copy of such report free of charge. A copy of the police report
15 and completed domestic [~~violence~~] incident report, including the lethal-
16 ity assessment questions shall be promptly forwarded to the appropriate
17 law enforcement agency with jurisdiction over the location where the

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [~~-~~] is old law to be omitted.

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1 incident is reported to have occurred for the purposes of further inves-
2 tigation.

3 § 2. Subdivision 15 of section 837 of the executive law, as added by
4 chapter 222 of the laws of 1994 and the opening paragraph as amended by
5 chapter 432 of the laws of 2015, is amended to read as follows:

6 15. Promulgate, in consultation with the superintendent of state
7 police and the state office for the prevention of domestic violence, and
8 in accordance with paragraph (f) of subdivision three of section eight
9 hundred forty of this article, a standardized "domestic [violence] inci-
10 dent report form" for use by state and local law enforcement agencies in
11 the reporting, recording and investigation of all alleged incidents of
12 domestic violence, regardless of whether an arrest is made as a result
13 of such investigation. Such form shall be prepared in multiple parts,
14 one of which shall be immediately provided to the victim, and shall
15 include designated spaces for: the recordation of the results of the
16 investigation by the law enforcement agency and the basis for any action
17 taken; the recordation of a victim's allegations of domestic violence;
18 the age and gender of the victim and the alleged offender or offenders;
19 and immediately thereunder a space on which the victim may sign and
20 verify such victim's allegations. Such form shall also include, but not
21 be limited to spaces to identify:

22 (a) what other services or agencies, including but not limited to
23 medical, shelter, advocacy and other supportive services are or have
24 previously been involved with the victim; [and]

25 (b) whether the victim has been provided with the written notice
26 described in subdivision five of section eight hundred twelve of the
27 family court act and subdivision six of section 530.11 of the criminal
28 procedure law[-]; and

29 (c) the results of a lethality assessment. By January first, two thou-
30 sand twenty-seven, the division, in consultation with the New York state
31 office for the prevention of domestic violence and stakeholders, shall
32 update the domestic incident report form and develop training for law
33 enforcement. Training on how to administer such assessment shall be
34 delivered by the office for the prevention of domestic violence. All law
35 enforcement officers shall successfully complete such training by Janu-
36 ary first, two thousand twenty-eight. Beginning January first, two thou-
37 sand twenty-eight, such training shall be incorporated into any training
38 requirements for new law enforcement officers.

39 (i) To administer the lethality assessment questions, a law enforce-
40 ment officer shall ask the victim, in the same or similar wording and in
41 the same order, all of the following questions; provided, however, the
42 division, in consultation with the office for the prevention of domestic
43 violence, shall have the authority to issue guidance to amend, supple-
44 ment, or remove any of such questions:

45 (1) Have they ever used a weapon against you or threatened you with a
46 weapon?

47 (2) Did they ever threaten to kill you, your children, or your pets?

48 (3) Do you believe they will try to kill you or have they tried to
49 kill you?

50 (4) Have they ever strangled or choked you or attempted to strangle or
51 choke you?

52 (5) Do they have a firearm or could they get one easily?

53 (6) Are they violently or constantly jealous, or do they control most
54 of your daily activities?

55 (7) Have you left them or separated from them after living together or
56 being married?

1 (8) Are they unemployed?

2 (9) Have they ever threatened to kill themselves?

3 (10) Do you have a child whom they believe is not their biological
4 child?

5 (11) Do they follow, spy on, or send threatening messages to you?

6 (12) Is there anything else that worries you about your safety and, if
7 so, what worries you?

8 (13) Any other questions the division, in consultation with the office
9 for the prevention of domestic violence, shall deem necessary.

10 (ii) A law enforcement officer shall advise the victim of the results
11 of the assessment and refer the victim to the local domestic violence
12 program and provide the number of the New York state domestic and sexual
13 violence hotline. The law enforcement officer shall follow all
14 directions on the domestic incident report regarding scoring responses
15 and referrals based on such scoring, including sharing a copy of the
16 report with the local domestic violence program and any applicable high
17 risk teams. If the law enforcement officer determines the information
18 collected in response to such questions establishes credible information
19 that an individual is likely to engage in conduct that would result in
20 serious harm to such individual or others, as defined in paragraph one
21 or two of subdivision (a) of section 9.39 of the mental hygiene law, the
22 office shall file an application for an extreme risk protection order
23 in accordance with section sixty-three hundred forty-one of the civil
24 practice law and rules.

25 (iii) If the victim does not, or is unable to, provide information to
26 a law enforcement officer sufficient to allow the law enforcement offi-
27 cer to administer a lethality assessment, the law enforcement officer
28 shall note the lack of a lethality assessment in a written police report
29 and attempt to refer the victim to the nearest certified domestic
30 violence program or the New York state domestic and sexual violence
31 hotline.

32 § 3. Subdivision (a) of section 214-b of the executive law, as amended
33 by chapter 432 of the laws of 2015, is amended to read as follows:

34 (a) intake and recording of victim statements, and the prompt trans-
35 lation of such statements if made in a language other than English, in
36 accordance with subdivision (c) of this section, on a standardized
37 "domestic [violence] incident report form" promulgated by the state
38 division of criminal justice services in consultation with the super-
39 intendent and with the state office for the prevention of domestic
40 violence, and the investigation thereof so as to ascertain whether a
41 crime has been committed against the victim by a member of the victim's
42 family or household as such terms are defined in section eight hundred
43 twelve of the family court act and section 530.11 of the criminal proce-
44 dure law;

45 § 4. Subparagraph 1 of paragraph (f) of subdivision 3 of section 840
46 of the executive law, as amended by chapter 432 of the laws of 2015, is
47 amended to read as follows:

48 (1) intake and recording of victim statements, and the prompt trans-
49 lation of such statements if made in a language other than English, in
50 accordance with subparagraph three of this paragraph, on a standardized
51 "domestic [violence] incident report form" promulgated by the division
52 of criminal justice services in consultation with the superintendent of
53 state police, representatives of local police forces and the state
54 office for the prevention of domestic violence, and the investigation
55 thereof so as to ascertain whether a crime has been committed against
56 the victim by a member of the victim's family or household as such terms

1 are defined in section eight hundred twelve of the family court act and
2 section 530.11 of the criminal procedure law; and

3 § 5. Subparagraph 5 of paragraph a of subdivision 2 of section 654-a
4 of the general business law, as amended by chapter 17 of the laws of
5 2013, is amended to read as follows:

6 (5) the purchaser of a contract signed by more than one purchaser
7 provides to the operator a copy of any of the following, within six
8 months of its issuance, involving domestic violence by another signatory
9 of the same contract: (A) a valid domestic [~~violence~~] incident report
10 form as such term is defined in subdivision fifteen of section eight
11 hundred thirty-seven of the executive law; (B) a valid police report;
12 (C) a valid order of protection; or (D) a signed affidavit from a
13 licensed medical or mental health care provider, employee of a court
14 acting within the scope of [~~his or her~~] such individual's employment,
15 social worker, a rape crisis counselor as defined in section forty-five
16 hundred ten of the civil practice law and rules, or advocate acting on
17 behalf of an agency that assists domestic violence victims. Paragraph d
18 of this subdivision shall not apply to a purchaser canceling under this
19 subparagraph. A claim for termination under this subparagraph shall be
20 made in good faith. Termination under this subparagraph shall require,
21 and the provision of any of the items in (A) through (D) of this subpar-
22 agraph, for the purposes of this subparagraph, shall be presumptive
23 evidence of the continued existence of a substantial risk of physical or
24 emotional harm to the purchaser or purchaser's child.

25 § 6. This act shall take effect immediately.